NATIONAL COMPANY LAW TRIBUNAL
CHANDIGARH BENCH (COURT-I), CHANDIGARH

CP (CAA) No. 36/Chd/Hry/2025

(A Petition under sections 230 to 232 and other applicable provisions of the Companies Act, 2013, read with the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016)

IN THE MATTER OF SCHEME OF DEMERGER AMONGST:

INMORPHIS SERVICES PRIVATE LIMITED
(CIN - U93000HR2015PTC127350)
Regd. Off. 91 Springboard Business Hub Private Limited,
Ground, & 1st Floor, DLF Building No.7A,
DLF Cyber City, DLF Phase-2,
Sector-24, DLF QE, Gurgaon,
Dlf Qe, Haryana 122002
PAN: AADCI8504M
Email: finance@inmorphis.com
Phone: +91-7303042062

Petitioner Company No.1/
Demerged Company

AND

INMORPHIS CONSULTING PRIVATE LIMITED
(CIN - U62099HR2024FTC122863)
Regd. Off. GF &1st Fir, B.NO 7A DLF,
Phase-2 Cyber City, SEC-24, DLF QE,
Gurgaon, Dlf Qe, Haryana 122002
PAN: AAHCI7372K
Email:finance@inmorphis.com
Phone: +91-7303042062

Petitioner Company No.2 /
Resulting Company

Order delivered on: 05.05.2026

CORAM: MR. KHETRABASI BISWAL, MEMBER (JUDICIAL)
MR. SHISHIR AGARWAL, MEMBER (TECHNICAL)

Appearance:

For the Petitioner Companies : Mr. D. Bhattacharya, Advocate
Ms. Deeti Ojha, Advocate

For the RD-Chandigarh : Mr. Apurva Asmar, Assistant Director

For the Income Tax Dept. : Mr. Varun Issar, Senior Standing Counsel

ORDER

1. The present Joint Company Petition has been filed by the Petitioner Companies, namely Inmorphis Services Private Limited (hereinafter referred to as "Petitioner Company No. 1 / Demerged Company") with Inmorphis Consulting Private Limited (hereinafter referred to as "Petitioner Company No. 2 / Resulting Company"), along with their respective shareholders and creditors, under Sections 230 to 232 and other applicable provisions of the Companies Act, 2013 (hereinafter referred to as "Act"), read with the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016, seeking sanction of the Scheme of Arrangement (hereinafter referred to as "the Scheme") between the Demerged Company and the Resulting Company. A copy of the Scheme is annexed as Annexure-A to the present Application.

2. The Petitioner Companies had jointly filed the First Motion Application bearing CA(CAA)No.35/Chd/Hry/2025 seeking directions for dispensing with the requirement of convening meetings of Shareholders and Creditors of both the Petitioner Companies.

3. This Tribunal, vide its Order, dated 04.08.2025, allowed the First Motion Application and dispensed with the requirement of convening the meetings of the shareholders/creditors of both the Petitioner Companies.

4. The main objects, date of incorporation, authorized and paid-up share capital, and the rationale of the Scheme have already been discussed in

detail in the First Motion Order dated 04.08.2025. The Board of Directors of the Demerged and Resulting Company *vide* its resolution dated 17.06.2025 approved the Scheme, subject to the directions and sanction of this Tribunal. Certified copies of the Board Resolutions of the Demerged and Resulting Company are annexed with the application as Annexure G and Annexure L respectively.

5. In the Second motion proceedings, this Tribunal *vide* Order dated 12.09.2025 directed that notice be given to the statutory and regulatory authorities, i.e., Registrar of Companies, NCT of Delhi and Haryana, Income Tax Authorities, and Reserve Bank of India. The notice of hearing is to be published in "Financial Express" (English Edition) and "Jansatta" (Hindi Edition) to call for objections, if any. In compliance with this Order, the Petitioner Companies had served the notices to the concerned Statutory/Sectoral Authorities. The notice of hearing was duly published on 16.10.2025 in the NCR editions of "Financial Express" (English) and "Jansatta" (Hindi).

6. In response to the abovementioned notices, the statutory authorities furnished their Reports, and the Petitioner Companies have filed their clarification thereon. However, no objections were received from the public. The same are as follows:

6.1. Income Tax Department

The Income Tax Department *vide* report dated 18.11.2025, has submitted that, as per the records available, there is no outstanding

income tax demand with regard to Petitioner Companies. The IT department has noted that a refund of Rs. 4.72 crores (approx.) is due to the Petitioner Company, and assessment for AY 2024-25 is pending. The Department has stated that it has no objection to the Scheme.

As recorded in the order dated 13.02.2026, the learned Counsel appearing for the Income Tax Department has stated that the department has no objections to the proposed scheme.

6.2. Regional Director (RD) and Registrar of Companies (RoC)

The report of the Regional Director (hereinafter referred to as 'RD'), enclosing therewith the report of Registrar of Companies (hereinafter referred to as 'RoC') dated 15.01.2026. The Regional Director has raised certain observations and the Petitioner Companies have filed an Affidavit with the response as under:

S.No.	Observations by RD/RoC	Response of the Petitioner
1.	As per the auditor report for demerged company, the company has excess amount spent of CSR Rs. 12.28 lakhs under section 135 (5) of the Act pursuant to other than ongoing project.	The same is factual in nature and needs no response. Section 135(5) of the Act, 2013, mandates companies to spend at least 2% of their average net profits on Corporate Social Responsibility (CSR) activities. The law prescribes a minimum threshold and does not bar CSR spending in excess of 2%
2.	In case of Demerged Company, the company has foreign shareholder which holds CCPS (Compulsorily Convertible	RBI has already filed their response vide letter dated 23.09.2025 and Please refer to the response under the head, Reserve Bank of India.

	Preference Shares). Thus, the company may be directed to comply with the FEMA regulations.	
3.	In case of Demerged Company, the subject company has pending statutory dues from different statutory bodies. The company may clarify the same.	There were certain dues in the nature of TDS on perquisites and default in deposit in TDS. The same has already been rectified and pursuant to notices served on the IT department, it has filed its report giving a no-objection to the Scheme. Please refer to the response under the head, Income Tax.
4.	As per the financial statements year ended 31.03.2024, the Demerged Company has pending dues of MSME of Rs. 25.60 lakhs and for other enterprises is Rs. 68.93 lakhs. Consent from these entities is required to be provided by the Company.	The MSME ACT provides that undisputed dues are required to be paid within 15 days (in absence of any agreement) or 45 days (if there is an agreement) from the date of acceptance, failing which interest as prescribed under section 15 of the MSME Development Act 2006 (MSME Act) is attracted. The dues reflected in the balance sheets of the petitioner companies are all classified as dues under 1 year, 1-2 years, 2-3 years and more than 3 years. All MSME dues are as on 31.03.2024/31.03.2025 are within the time period prescribed under the MSME Act and are classified under 1 year (being the lowest classification category) and have been duly discharged within the time period prescribed under the Act. The Petitioner Companies undertakes to comply with all provisions of the MSME Act. With regard to outstanding dues of Petitioner Company 1 to other creditors, the same has already been duly discharged which is reflected in the provisional balance sheet as on 31.03.2025. (Refer to note 8 on page 178 of the Company Petition)
5.	In case of Resulting Company, as per the provisional balance sheet for the year ended 31.03.2025, the company has dues of MSME of Rs. 18,848/-	
6.	In case of Demerged Company, as per auditor report for FY 2023-24 delay in	I state that Petitioner Companies have discharged the statutory dues and the delays pertains to deposit of TDS. The said amount was duły deposited with

	depository dues of Provident fund and Employee State Insurance, Income Tax/MSME dues, TDS dues. Company may clarify.	requisite interest and pursuant to notices served on the IT department, it has filed its report giving a no-objection to the Scheme. Please refer to the response under the head, Income Tax.
7.	As per clause 7.6 of the scheme, it is mentioned that there being any pending and valid share transfers, whether lodged or outstanding, of any shareholder of the Demerged Company, the board of directors of the resulting company. Are there any pending share transfers? How such share transfer will be done post de-merger.	Clause 7.6 is merely an enabling clause and there are no pending share transfers.
8.	As per financial statements for FY 2023-24 the demerged company bought back share for Rs. 25,000 per share. Whereas current valuation as per submitted report for Rs. 4666.9/- per share. The discrepancy of same needs to be clarified by Company.	The buy-back pertains to FY 2022-23 wherein the company bought back 400 shares @ Rs. 25,000. Thereafter the company had issued 731,250 bonus shares and hence valuation per share was lower as the base for calculation includes higher number of shares (including bonus shares) as against the base of the shares at the time of buy-back which was substantially lesser
9.	Refer to clause 21 of the Scheme. Except in the circumstances mentioned in Clause 19 above and withdrawal of Scheme as mentioned in Clause 20 above, all costs, charges, taxes including duties	The same is factual in nature and needs no response. In any event, under the Income-tax Act, 1961, expenditure is allowable, if at all, only in the hands of the entity which incurs and bears such expenditure, in line with the principles under Section 37(1). The IT authorities have already scrutinized the instant scheme and have submitted their report giving a no-objection.

	(including the stamp duty and/or transfer charges, if any, applicable in relation to this Scheme), levies and all other expenses, if any (save as expressly otherwise agreed) of the Demerged Company and the Resulting Company arising out of or incurred in carrying out and implementing this Scheme and matters incidental thereto shall be borne and paid by the Demerged Company for Demerger. All the aforesaid expenses shall be referred to as 'Expenses of Demerge'.	

As recorded in the order dated 08.04.2026, the learned Counsel appearing for the RD/ROC submits that, upon consideration of the report/clarifications furnished by the Company, the Department has no further observations or objections against the proposed Scheme.

6.3. Reserve Bank of India

The Reserve Bank of India has filed its reply dated 23.09.2025, wherein it has not commented on the Scheme and has merely stated that it is for the companies undergoing compromise/ arrangement/ amalgamation to comply with the rules and regulations prescribed by

RBI, including the Foreign Exchange Management Act 1999 and the rules and regulations framed thereunder.

In response to the aforesaid observations, it is submitted by the Petitioner that Rule 19(1) of the Foreign Exchange Management (Non-debt Instruments) Rules, 2019, expressly permits a Transferee Company in a demerger to issue equity shares to the existing foreign shareholders of the Transferor/Resulting company. The Petitioner confirms that such issuance shall be carried out in strict adherence to the following statutory conditions:

a) the transfer or issue is in compliance with the entry routes, sectoral caps or investment limits, as the case may be and the attendant conditionalities of investment by a person resident outside India: Provided that where the percentage is likely to breach the sectoral caps or the attendant conditionalities, the transferor company or the transferee or new company may obtain necessary approval from the Central Government;
(b) the transferor company or the transferee company or the new company is not engaged in any sector prohibited for investment by a person resident outside India.
Note: Government approval shall not be required in case of mergers and acquisitions taking place in sectors under automatic route.

It is further stated that in terms of para 4 of Annexure 4 of the Consolidated FDI Policy Circular of 2017, no government approval is required in case of mergers and acquisitions taking place in sectors under automatic route. The relevant para of the Consolidated FDI Policy Circular of 2020 is quoted below for ready reference:

"*4. Acquisition of shares under Scheme of Merger/ Demerger/Amalgamation: Mergers/ demergers/ amalgamations of companies in India are usually governed by an order issued by a competent Court on the basis of the Scheme submitted by the companies undergoing merger/demerger/amalgamation. Once the scheme of merger or demerger or amalgamation of two or more Indian companies has been approved by a Court in India, the transferee company or new company is allowed to issue shares to the shareholders of the transferor company resident outside India, subject to the conditions that:*
(i) the percentage of shareholding of persons resident outside India in the transferee or new company does not exceed the sectoral cap, and

(ii) the transferor company or the transferee or the new company is not engaged in activities which are prohibited under the FDI policy.
Note: Government approval would not be required in case of mergers and acquisitions taking place in sectors under automatic route"

It is also clarified that the Petitioner Company 1 is engaged in IT & ITES sector, which falls under the automatic route wherein 100% FDI is permitted and the Petitioner Companies (do not) undertake any activity which is subject to any sectoral cap or investment limits. The Transferor and Transferee Companies undertake that on sanction of the Scheme they shall not engage in any sector prohibited for investment by a person resident outside India and also undertake to comply with all requirements, including reporting requirements relating to issuance of shares upon sanction of the Scheme by the Hon'ble Tribunal.

7. The Statutory Auditors of all the Petitioner Companies have examined the Scheme in terms of provisions of Section 232 of the Act and rules made thereunder. The certificate of the Statutory Auditors with respect to the Scheme between Petitioner Companies to the effect that the accounting treatment proposed in the Scheme complies with applicable Indian Acounting Standards (Ind AS) as specified in Section 133 of the Act, read with Rules made thereunder, and other Generally Accepted Accounting Principles is annexed as Annexure N and Annexure O to the Petition.

8. We have heard the learned Senior Counsel for the Petitioner Companies and also the learned Counsel appearing for the Statutory

Authorities, and have gone through the material available on record carefully.

9. On the basis of the facts and submissions made by the learned Senior Counsel appearing for the Petitioner Companies and on perusal of the Scheme, the proposed Composite Scheme of Demerger between the Petitioner Companies appears to be prima facie in compliance with all the requirements stipulated under the relevant provisions of the Companies Act, 2013. In light of the clarification provided by the Petitioner Companies, the observations made by the Statutory/Regulatory authorities do not appear to pose any impediment to sanctioning the proposed Scheme. We are of the considered view that the proposed Scheme is bona fide and not against the interests of the shareholders and creditors. Since all the requisite statutory compliance has been fulfilled, this Tribunal sanctions the Scheme of Demerger appended as Annexure A to the Petition.

10. Notwithstanding the above, if there is any deficiency found or violation committed under any enactment, statutory rules, or regulations, the sanction granted by this Tribunal to the Scheme will not come in the way of action being taken, albeit in accordance with the law, against the concerned persons, directors, and officials of the Petitioner Companies.

11. While approving the Scheme as above, it is clarified that this Order should not be construed as an Order in any way granting exemption from payment of stamp duty, taxes or any other charges if any, payment is due or required in accordance with law or in respect to any permission/compliance

with any other requirement which may be specifically required under any law.

12. The Income Tax Department will be free to examine the aspect of any tax payable as a result of the sanction of the scheme and if it is found that the Scheme of Arrangement ultimately results in tax avoidance or is not in accordance with the applicable provisions of the Income Tax Act, 1961, then the Income Tax Department shall be at the liberty to initiate appropriate course of action in accordance with the law. Any sanction of the scheme of arrangement under section 230-232 of the Companies Act, 2013, shall not adversely affect the rights of the Income Tax Department or any past, present, or future proceedings, and the sanction of the scheme shall not come in its way for the appropriate course of action as per law for the tax liabilities, if any.

13. **THIS TRIBUNAL DO FURTHER ORDER:**

(i) The Scheme of Demerger contemplated between the Petitioner Companies, annexed as "Annexure A" to the Petition, is hereby sanctioned. It is declared that the same shall be binding on the Petitioner Companies and their shareholders, creditors, and all concerned under the Scheme.

(ii) All assets, properties, rights and interests pertaining to the IT Business Undertaking of the Demerged Company shall stand transferred to and vested in the Resulting Company, and all remaining

assets and rights of the Demerged Company shall continue to stay vested in the Demerged Company.

(iii) All the liabilities and duties of the Demerged Business of the Demerged Company shall be transferred, without further act or deed, to the Petitioner Company No.2/Resulting Company, and accordingly, the same shall, pursuant to Sections 230 to 232 of the Act, be transferred to and become the liabilities and duties of the Resulting Company;

(iv) All proceedings, if any, pending by or against the Demerged business of the Demerged Company shall be continued by or against the Resulting Company.

(v) All contracts of the Petitioner Company No.1 pertaining to the Demerged Undertaking which are subsisting or having effect immediately before the Effective Date, shall stand transferred to and vested in the Petitioner Company No. 2 and be in full force and effect in favour of the Petitioner Company No. 2 and may be enforced by or against it as fully and effectually as if, instead of the Petitioner Company No.1 pertaining to the Demerged Undertaking, the Petitioner Company No.2 had been a party or beneficiary or obliged thereto;

(vi) All the employees of the Demerged business of the Demerged Company shall be deemed to have become the employees and the staff of the Resulting Company, with effect from the Appointed Date, and shall stand transferred to the Resulting Company as provided in the scheme.

(vii) The Appointed Date for the Scheme is 01.04.2025 as mentioned in the Scheme;

(viii) The Resulting Company shall, without further application, allot to the existing members of the Demerged Company, shares of the Resulting Company to which they are entitled under the said Scheme;

(ix) The Petitioner Companies will furnish a self-certified copy of the approved Scheme and Schedule of Assets of the Demerged Undertaking to the Designated Registrar of this Tribunal. The Designated Registrar will issue a certified copy of this Order together with the authenticated copy of the approved Scheme and Schedule of Assets as its enclosures. All the Authorities are directed to act on the certified copy of this order as issued by the Designated Registrar;

(x) The Resulting Companies are directed to file the certified copy of this Order, along with a copy of the Scheme, with the concerned Registrar of Companies, electronically, along with e-form INC-28, within 30 days or an extended timeline with payment of additional fees, as may be applicable, from the date of receipt of the Order. Following that, the necessary steps shall be taken by the Registrar of Companies.

(xi) The Resulting Company is directed to lodge a copy of this Order and the approved Scheme and Schedule of Assets of the Demerged Undertaking, duly authenticated by the Designated Registrar of this Tribunal respectively as the case may be, with the concerned Superintendent of Stamps, for adjudication of stamp duty, if any, within 60 days from the date of receipt of the Order;

(xii) Any person interested shall be at liberty to apply to this Tribunal in the above matter for any directions that may be necessary.

(xiii) All the concerned Regulatory Authorities are to act in accordance with the Order annexed to the Scheme, duly authorised by this Designated Registrar of this Bench.

14. Accordingly, the Company Petition bearing **CP(CAA) No. 36/Chd/Hry/2025** stands **allowed and disposed of**.

Sd/-
SHISHIR AGARWAL
Member (Technical)

Sd/-
KHETRABASI BISWAL
Member (Judicial)

Ruhani